

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.

4. S-CV-0050570 CATURAY, ROCHELLE v. MILLER, KURT

Petition for Approval of Minor's Compromise Claim (Alessandra Caturay)

The petition for approval of minor's compromise claim is denied without prejudice. There are several deficiencies with the petition. First, the petition does not allege what injuries claimant Alessandra Caturay suffered. Second, the petition alleges there is no contractual or statutory lien for medical expenses but nonetheless requests that \$1,500 of the settlement proceeds be paid toward medical expenses. Third, the petition does not attach any medical records. Fourth, the petition requests that \$4,500—the entire settlement amount after subtracting medical expenses—be paid to the guardian of the estate but then also requests that \$911 be deposited into an insured account in a financial institution in the state. This creates two distinct issues: one, petitioner requests funds to be allocated greater than the amount recovered and two, the petition does not specify which financial institution the funds are to be placed.

5. S-CV-0051324 AMERICAN EXPRESS NAT'L v. HABIBI, FATEMA

Plaintiff's Motion to Vacate the Conditional Dismissal and for Entry of Judgment Pursuant to Code of Civil Procedure Section 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on November 2, 2023, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$53,732.26, less credits in the amount of \$38,733.36, plus court costs in the amount of \$475, for a total judgment entered of \$15,473.90.

6. S-CV-0052034 ORTIZ, MICHAEL v. CITY OF LINCOLN

Plaintiff's Motion to Tax Costs Submitted by Jewett Defendants

Plaintiff moves to tax defendants John Jewett and Jessica Jewett's memorandum of costs filed with the court on February 13, 2026, after the court granted defendants' motion for summary judgment.

The court must first determine whether defendants are prevailing parties pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains